

**BEFORE
THE FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-34

SEAFair USA LLC

VS.

STERLING CONTAINER LINE LIMITED AND
ATLANTIC FORWARDING LTD.

MOTION FOR ENLARGEMENT OF TIME

Pursuant to 46 CFR § 502.71 and 46 CFR § 502.102 of the Federal Maritime Commission Rules of Practice and Procedure, the Complainant SEAFair USA LLC (“SeaFair” or “Complainant”) hereby submits its motion for enlargement of time to file a response to Respondents STERLING CONTAINER LINE LIMITED and ATLANTIC FORWARDING LTD.’s (hereinafter “Respondents”) Motion For Leave to File a Sur-Reply (hereinafter “Respondents’ motion). Complainant respectfully requests that it be granted seven (7) days extension to respond to Respondents’ motion.

I. BACKGROUND

Respondents’ motion was filed on September 22, 2023, which under 46 CFR § 502.71 renders a deadline of September 29, 2023 for Complainant to file a response. Respondents’ motion raises significant issues which merit response by Complainant. Counsel for Complainant wishes to fully address these issues, but is constrained by several other deadlines that cannot be adjusted. Therefore, for the reasons set out below, Complainant respectfully requests that the deadline be extended.

II. GOOD CAUSE

Complainant brings this action for good cause. Respondents' motion is not limited to a request for a sur-reply, but also includes a request that the honorable ALJ strike certain portions of Complainant's Reply Brief (Doc. No. 28; Dkt. 22-34). See Respondents' motion at 3. While Respondents' motion for a sur-reply merits response in and of itself, Complainant feels compelled to fully and completely defend against Respondents' efforts to strike information from the Reply Brief.

In addition to the substance of the Reply Brief, Respondents have objected to the format of certain appendices attached to the Reply Brief. In their motion, they argue that the appendices do not conform to the format prescribed by the Initial Scheduling Order of January 18, 2023. (Doc. No. 7; Dkt. 22-34). See Respondents' motion at 2. Though the ALJ has not yet ruled on the acceptability of the format of these appendices, SeaFair would use the extension to address any formatting objections that Respondents have made.

An extension is necessary because counsel for the Complainant is faced with several approaching deadlines that cannot be moved. An extension would allow counsel to both fully respond to the arguments made by Respondents as well as to address the formatting that Respondents find objectionable.

III. NO DELAY OR PREJUDICE TO RESPONDENTS

Granting this motion would neither unduly delay the proceeding nor unduly prejudice the Respondents. The Scheduling Order no longer contains any deadlines to be impacted by an extension: the final item in this proceeding is to be the decision of the ALJ. Respondents' motion raises issues of great consequence to Complainant. A full response to Respondents' motion

would require an additional time commitment. Therefore, on the contrary, denying this request will prejudice the Complainant.

IV. CONCLUSION AND CONFERENCE

In conclusion, Complainant respectfully asks that the ALJ extend the deadline to file a response to Respondents motion by seven (7) days. Respondents' motion contains arguments of great consequence for Complainant. As such, it merits a full and complete response. Additionally, Complainant would use extended time to address certain objections made by Respondents. However, an extension is necessary to achieving either of these goals. An extension would not delay the decision of the ALJ, nor prejudice the Respondents. Therefore, Complainants respectfully ask that a seven (7) day extension be granted.

Pursuant to 46 C.F.R. § 502.71(a), Complainant has attempted to discuss this motion in a good faith effort to determine whether Respondents oppose the proposed extension. Respondents have not indicated whether they consent to or oppose the instant Motion.

Date: September 26, 2023

Respectfully Submitted,
/s/ Shanshan Liang
Shanshan Liang, Esq.
Telephone: (850) 893-0670
Email: sliang@customscourt.com
LIANG + MOONEY, PLLC
2104 Delta Way, Suite #1
Tallahassee, FL 32303
Counsel for Complainant

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 26th day of September 2023, the foregoing Combined Motion for Extension of Deadline was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
The Honorable Erin M. Wirth
Chief Administrative Law Judge
Presiding Administrative Law Judge
judges@fmc.gov

Ashley K. Kelley, Esq.
Telephone: (843) 720-4679
Email: Ashley.Kelley@wbd-us.com
Womble Bond Dickinson (US) LLP
5 Exchange Street
PO Box 999 (29402)
Charleston, SC 29401

Julius H. Bodie, Esq.
Telephone: (202) 857-4552
Email: Julius.Bodie@wbd-us.com
Womble Bond Dickinson (US) LLP
2001 K Street, NW
Suite 400 South
Washington D.C. 20006

/s/ Shanshan Liang
Shanshan Liang, Esq.